

TENTATIVE RULINGS for LAW and MOTION

February 24, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Buck v. Anderson**
 Case No. CV-2024-0532

Hearing Date: **February 24, 2026** **Department Fourteen** **9:00 a.m.**

The petitioner, Peter Buck, and the minor, Fiona Buck, are **DIRECTED TO APPEAR** (in person or by Zoom). (Cal. Rules of Court, rule 7.952; YCR 2.4.) If the parties fail to appear at the hearing and the Court has not excused their personal appearance, the petition will be denied without prejudice. No request for a hearing is required.

TENTATIVE RULING

Case: **Lewis v. Swartz et al.**
 Case No. CV-2023-1829

Hearing Date: **February 24, 2026** **Department Eleven** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Magallon v. Solorzano**
 Case No. CV-2023-2182

Hearing Date: **February 24, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiffs Reyna Magallon and Esequiel Pena’s unopposed motion to strike defendant Francisco Solorzano’s answer or, in the alternative, sanctions against defendant and his counsel of record is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 2023.010, 2023.030, 2030.300, 2033.290.) Plaintiffs did not timely serve the motion on defendant. (Code Civ. Proc., §§ 1005, subd. (b), 1010.6, subd. (a)(3)(B).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **In re Ramirez**
 Case No. PR-2026-0014

Hearing Date: **February 24, 2026** **Department Fourteen** **9:00 a.m.**

The petitioner, Sonia Menez, and the minor, Cilicia Ramirez, are **DIRECTED TO APPEAR** (in person or by Zoom). (Cal. Rules of Court, rule 7.952; YCR 2.4.) If the parties fail to appear at the hearing and the Court has not excused their personal appearance, the petition will be denied without prejudice. No request for a hearing is required.

TENTATIVE RULING

Case: State of California, by and through the Department of Water Resources v. Angelo K. Tsakopoulos Holdings, LP et al.
Case No. CV-2022-1807

Hearing Date: February 24, 2026 **Department Fourteen** **9:00 a.m.**

Defendants Angelo K. Tsakopoulos Holdings, LP, Redwood Plaza Investments, LP, Upper Swanston Ranch, and Swanston West S, LLC's (collectively, "defendants") request for judicial notice ISO joint opposition to motions for possession is **GRANTED IN PART**. (Evid. Code, §§ 452, subd. (d), 453.) While the Court takes judicial notice of Request No. 1, the Court does not take judicial notice of Request Nos. 2-10 as the records are not relevant to the Court's determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Defendants' objections to the declaration of Elizabeth Vasquez ISO joint opposition to motions for possession are **OVERRULED**.

Defendants' supplemental request for judicial notice ISO joint opposition to motions for possession is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are not relevant to the Court's determination of this motion. (*Rowland, supra*, 4 Cal.4th at p. 268, fn. 6; see *Malek Media Group LLC, supra*, 58 Cal.App.5th at p. 825; *People ex rel. Lockyer, supra*, 24 Cal.4th at p. 422.) Plaintiff State of California, by and through the Department of Water Resources' ("plaintiff") objection to defendants' supplemental request for judicial notice is **OVERRULED AS MOOT** given the Court's ruling on the supplemental request.

The Court declines to consider the supplemental declaration of Kristen Renfro filed on December 3, 2025, as it was filed after the reply deadline. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1113(d); see also *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited]; *High Sierra Rural Alliance v. County of Plumas* (2018) 29 Cal.App.5th 102, 112 fn. 2.) As the Court is not considering the supplemental declaration of Kristen Renfro, the Court declines to rule on plaintiff's objection to the supplemental declaration.

Plaintiff's motion for order for prejudgment possession of property is **DENIED**. (Code Civ. Proc., § 1255.410.) Plaintiff has not shown that there is an overriding need for it to possess the property prior to the issuance of final judgment in the case and plaintiff will suffer a substantial hardship if the application for possession is denied or limited. (Cal. Const., art. I, §19, subd. (a); Code Civ. Proc., §§ 1255.410, subd. (d)(2)(C); Vasquez Decl.; Ghannam Decl.; Memo. Pts. & Auths., pp. 8-10.) The Court further finds that the hardship plaintiff will suffer if possession is denied or limited does not outweigh any hardship on defendants that would be caused by the granting of the order of prejudgment possession. (Code Civ. Proc., § 1255.410, subd. (d)(2)(D); Renfro Decl., ¶ 11, Exh. H [declaration of Mike Lear, dated 6/23/23]; Pickolick Decl.; Wittenberg Am. Decl.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: State of California, by and through the Department of Water Resources v. Conaway Preservation Group, LLC et al.
Case No. CV-2023-1284

Hearing Date: February 24, 2026 **Department Fourteen** **9:00 a.m.**

Defendants Conaway Preservation Group, LLC, and Reclamation District No. 2035's (collectively, "defendants") request for judicial notice ISO joint opposition to motions for possession is **GRANTED IN PART**. (Evid. Code, §§ 452, subd. (d), 453.) While the Court takes judicial notice of Request No. 1, the Court does not take judicial notice of Request Nos. 2-10 as the records are not relevant to the Court's determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Defendants' objections to the declaration of Elizabeth Vasquez ISO joint opposition to motions for possession are **OVERRULED**.

Defendants' supplemental request for judicial notice ISO joint opposition to motions for possession is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are not relevant to the Court's determination of this motion. (*Rowland, supra*, 4 Cal.4th at p. 268, fn. 6; see *Malek Media Group LLC, supra*, 58 Cal.App.5th at p. 825; *People ex rel. Lockyer, supra*, 24 Cal.4th at p. 422.) Plaintiff State of California, by and through the Department of Water Resources' ("plaintiff") objection to defendants' supplemental request for judicial notice is **OVERRULED AS MOOT** given the Court's ruling on the supplemental request.

The Court declines to consider the supplemental declaration of Kristen Renfro filed on December 3, 2025, as it was filed after the reply deadline. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1113(d); see also *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited]; *High Sierra Rural Alliance v. County of Plumas* (2018) 29 Cal.App.5th 102, 112 fn. 2.) As the Court is not considering the supplemental declaration of Kristen Renfro, the Court declines to rule on plaintiff's objection to the supplemental declaration.

Plaintiff's motion for order for prejudgment possession of property is **DENIED**. (Code Civ. Proc., § 1255.410.) Plaintiff has not shown that there is an overriding need for it to possess the property prior to the issuance of final judgment in the case and plaintiff will suffer a substantial hardship if the application for possession is denied or limited. (Cal. Const., art. I, § 19, subd. (a); Code Civ. Proc., §§ 1255.410, subd. (d)(2)(C); Vasquez Decl.; Ghannam Decl.; Memo. Pts. & Auths., pp. 8-10.) The Court further finds that the hardship plaintiff will suffer if possession is denied or limited does not outweigh any hardship on defendant that would be caused by the granting of the order of prejudgment possession. (Code Civ. Proc., § 1255.410, subd. (d)(2)(D); (Siegel Decl., ¶¶ 2-11; Clark Decl., ¶¶ 2-9.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: State of California, by and through the Department of Water Resources v. Frank Webb Properties, LLC et al.
Case No. CV-2023-0954

Hearing Date: February 24, 2026 **Department Fourteen** **9:00 a.m.**

Defendant Frank Webb Properties, LLC's request for judicial notice ISO joint opposition to motions for possession is **GRANTED IN PART**. (Evid. Code, §§ 452, subd. (d), 453.) While the Court takes judicial notice of Request No. 1, the Court does not take judicial notice of Request Nos. 2-10 as the records are not relevant to the Court's determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Defendant's objections to the declaration of Elizabeth Vasquez ISO joint opposition to motions for possession are **OVERRULED**.

Defendant's supplemental request for judicial notice ISO joint opposition to motions for possession is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are not relevant to the Court's determination of this motion. (*Rowland, supra*, 4 Cal.4th at p. 268, fn. 6; see *Malek Media Group LLC, supra*, 58 Cal.App.5th at p. 825; *People ex rel. Lockyer, supra*, 24 Cal.4th at p. 422.) Plaintiff State of California, by and through the Department of Water Resources' ("plaintiff") objection to defendants' supplemental request for judicial notice is **OVERRULED AS MOOT** given the Court's ruling on the supplemental request.

The Court declines to consider the supplemental declaration of Kristen Renfro filed on December 3, 2025, as it was filed after the reply deadline. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1113(d); see also *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited]; *High Sierra Rural Alliance v. County of Plumas* (2018) 29 Cal.App.5th 102, 112 fn. 2.) As the Court is not considering the supplemental declaration of Kristen Renfro, the Court declines to rule on plaintiff's objection to the supplemental declaration.

Plaintiff's motion for order for prejudgment possession of property is **DENIED**. (Code Civ. Proc., § 1255.410.) Plaintiff has not shown that there is an overriding need for it to possess the property prior to the issuance of final judgment in the case and plaintiff will suffer a substantial hardship if the application for possession is denied or limited. (Cal. Const., art. I, §19, subd. (a); Code Civ. Proc., §§ 1255.410, subd. (d)(2)(C); Vasquez Decl.; Ghannam Decl.; Memo. Pts. & Auths., pp. 8-10.) The Court further finds that the hardship plaintiff will suffer if possession is denied or limited does not outweigh any hardship on defendant that would be caused by the granting of the order of prejudgment possession. (Code Civ. Proc., § 1255.410, subd. (d)(2)(D); Renfro Decl., ¶ 10, Exh. G [declaration of Dean Webb, dated 6/27/23].)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **State of California, by and through the Department of Water
Resources v. H. Pond, LLC et al.
Case No. CV-2023-0956**

Hearing Date: **February 24, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff State of California, by and through the Department of Water Resources' motion for order for prejudgment possession of property is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 1255.410.) Plaintiff failed to file with the Court a memorandum in support of its motion as required by California Rules of Court, rules 3.1112 and 3.1113.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: State of California, by and through the Department of Water Resources v. Albert J. Lassaga and Joanna G. Lassaga et al.
Case No. CV-2023-1009

Hearing Date: February 24, 2026 **Department Fourteen** **9:00 a.m.**

Defendants Albert J. Lassaga and Joanna G. Lassaga’s joint opposition to plaintiff State of California, by and through the Department of Water Resources’ (“plaintiff”) motion for possession exceeds the 15-page limit set forth in California Rules of Court, rule 3.1113(d) without prior court approval. (See Cal. Rules of Court, rule 3.1113(d), (e).) Despite the foregoing, the Court will consider the entire joint opposition. (Cal. Rules of Court, rule 3.1113(g) [oversize brief to be treated as a late-filed brief]; Cal. Rules of Court, rule 3.1300(d) [court has discretion to consider a late filed paper]; *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [“a trial court has broad discretion to accept or reject late-filed papers.”].) However, in the future, the Court may decline to consider any argument or legal authority found in pages exceeding the maximum permitted number of pages.

Defendants’ request for judicial notice ISO joint opposition to motions for possession is **GRANTED IN PART**. (Evid. Code, §§ 452, subd. (d), 453.) While the Court takes judicial notice of Request No. 1, the Court does not take judicial notice of Request Nos. 2-10 as the records are not relevant to the Court’s determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Defendants’ objections to the declaration of Elizabeth Vasquez ISO joint opposition to motions for possession are **OVERRULED**.

Defendants’ supplemental request for judicial notice ISO joint opposition to motions for possession is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are not relevant to the Court’s determination of this motion. (*Rowland, supra*, 4 Cal.4th at p. 268, fn. 6; see *Malek Media Group LLC, supra*, 58 Cal.App.5th at p. 825; *People ex rel. Lockyer, supra*, 24 Cal.4th at p. 422.) Plaintiff’s objection to defendants’ supplemental request for judicial notice is **OVERRULED AS MOOT** given the Court’s ruling on the supplemental request.

The Court declines to consider the supplemental declaration of Kristen Renfro filed on December 3, 2025, as it was filed after the reply deadline. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1113(d); see also *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited]; *High Sierra Rural Alliance v. County of Plumas* (2018) 29 Cal.App.5th 102, 112 fn. 2.) As the Court is not considering the supplemental declaration of Kristen Renfro, the Court declines to rule on plaintiff’s objection to the supplemental declaration.

Plaintiff’s motion for order for prejudgment possession of property is **DENIED**. (Code Civ. Proc., § 1255.410.) Plaintiff has not shown that there is an overriding need for it to possess the property prior to the issuance of final judgment in the case and plaintiff will suffer a substantial

hardship if the application for possession is denied or limited. (Cal. Const., art. I, §19, subd. (a); Code Civ. Proc., §§ 1255.410, subd. (d)(2)(C); Vasquez Decl.; Ghannam Decl.; Memo. Pts. & Auths., pp. 8-10.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: State of California, by and through the Department of Water
Resources v. Los Rios Farms, Inc. et al.
Case No. CV-2023-0973

Hearing Date: February 24, 2026 **Department Fourteen** **9:00 a.m.**

Defendants Los Rios Farms, Inc. and PGIM Real Estate Finance, LLC's (collectively, "defendants") request for judicial notice ISO joint opposition to motions for possession is **GRANTED IN PART**. (Evid. Code, §§ 452, subd. (d), 453.) While the Court takes judicial notice of Request No. 1, the Court does not take judicial notice of Request Nos. 2-10 as the records are not relevant to the Court's determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Defendants' objections to the declaration of Elizabeth Vasquez ISO joint opposition to motions for possession are **OVERRULED**.

Defendants' supplemental request for judicial notice ISO joint opposition to motions for possession is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are not relevant to the Court's determination of this motion. (*Rowland, supra*, 4 Cal.4th at p. 268, fn. 6; see *Malek Media Group LLC, supra*, 58 Cal.App.5th at p. 825; *People ex rel. Lockyer, supra*, 24 Cal.4th at p. 422.) Plaintiff State of California, by and through the Department of Water Resources' ("plaintiff") objection to defendants' supplemental request for judicial notice is **OVERRULED AS MOOT** given the Court's ruling on the supplemental request.

The Court declines to consider the supplemental declaration of Kristen Renfro filed on December 3, 2025, as it was filed after the reply deadline. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1113(d); see also *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited]; *High Sierra Rural Alliance v. County of Plumas* (2018) 29 Cal.App.5th 102, 112 fn. 2.) As the Court is not considering the supplemental declaration of Kristen Renfro, the Court declines to rule on plaintiff's objection to the supplemental declaration.

Plaintiff's motion for order for prejudgment possession of property is **DENIED**. (Code Civ. Proc., § 1255.410.) Plaintiff has not shown that there is an overriding need for it to possess the property prior to the issuance of final judgment in the case and plaintiff will suffer a substantial hardship if the application for possession is denied or limited. (Cal. Const., art. I, §19, subd. (a); Code Civ. Proc., §§ 1255.410, subd. (d)(2)(C); Vasquez Decl.; Ghannam Decl.; Memo. Pts. & Auths., pp. 8-10.) The Court further finds that the hardship plaintiff will suffer if possession is denied or limited does not outweigh any hardship on defendant that would be caused by the granting of the order of prejudgment possession. (Code Civ. Proc., § 1255.410, subd. (d)(2)(D); (Renfro Decl., ¶ 9, Exh. F [declaration of John Anderson, dated 7/3/23].)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: State of California, by and through the Department of Water Resources v. Bert T. Swanston, Trustee of the Bert T. Swanston Revocable Trust dated June 14, 2007 et al.
Case No. CV-2023-0812

Hearing Date: February 24, 2026 Department Fourteen 9:00 a.m.

Defendants Bert T. Swanston, trustee of the Bert T. Swanston revocable trust dated June 14, 2007, Swanston Properties, Upper Swanston Ranch, G. Erling Linggi, as trustee under the will of Marilyn J. Linggi, Reclamation District No. 2035, Pheasant Investment Corp., WS2 Ranch, LLC, Wooden Decoy, LLC, Matthew R. Swanston and Michael R. Swanston, successor trustees of the Bert T. Swanston revocable trust, and Swanston West S, LLC's (collectively, "defendants") request for judicial notice ISO joint opposition to motions for possession is **GRANTED IN PART**. (Evid. Code, §§ 452, subd. (d), 453.) While the Court takes judicial notice of Request No. 1, the Court does not take judicial notice of Request Nos. 2-10 as the records are not relevant to the Court's determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Defendants' objections to the declaration of Elizabeth Vasquez ISO joint opposition to motions for possession are **OVERRULED**.

Defendants' supplemental request for judicial notice ISO joint opposition to motions for possession is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are not relevant to the Court's determination of this motion. (*Rowland, supra*, 4 Cal.4th at p. 268, fn. 6; see *Malek Media Group LLC, supra*, 58 Cal.App.5th at p. 825; *People ex rel. Lockyer, supra*, 24 Cal.4th at p. 422.) Plaintiff State of California, by and through the Department of Water Resources' ("plaintiff") objection to defendants' supplemental request for judicial notice is **OVERRULED AS MOOT** given the Court's ruling on the supplemental request.

The Court declines to consider the supplemental declaration of Kristen Renfro filed on December 3, 2025, as it was filed after the reply deadline. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1113(d); see also *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited]; *High Sierra Rural Alliance v. County of Plumas* (2018) 29 Cal.App.5th 102, 112 fn. 2.) As the Court is not considering the supplemental declaration of Kristen Renfro, the Court declines to rule on plaintiff's objection to the supplemental declaration.

Plaintiff's motion for order for prejudgment possession of property is **DENIED**. (Code Civ. Proc., § 1255.410.) Plaintiff has not shown that there is an overriding need for it to possess the property prior to the issuance of final judgment in the case and plaintiff will suffer a substantial hardship if the application for possession is denied or limited. (Cal. Const., art. I, §19, subd. (a); Code Civ. Proc., §§ 1255.410, subd. (d)(2)(C); Vasquez Decl.; Ghannam Decl.; Memo. Pts. & Auths., pp. 8-10.) The Court further finds that the hardship plaintiff will suffer if possession is denied or limited does not outweigh any hardship on defendants that would be caused by the

granting of the order of prejudgment possession. (Code Civ. Proc., § 1255.410, subd. (d)(2)(D); Higgins Decl., ¶¶ 2-24.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: State of California, by and through the Department of Water
Resources v. Swanston West S LLC, et al.
Case No. CV-2023-0774

Hearing Date: February 24, 2026 **Department Fourteen** **9:00 a.m.**

Defendant Swanston West S, LLC's request for judicial notice ISO joint opposition to motions for possession is **GRANTED IN PART**. (Evid. Code, §§ 452, subd. (d), 453.) While the Court takes judicial notice of Request No. 1, the Court does not take judicial notice of Request Nos. 2-10 as the records are not relevant to the Court's determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Defendant's objections to the declaration of Elizabeth Vasquez ISO joint opposition to motions for possession are **OVERRULED**.

Defendant's supplemental request for judicial notice ISO joint opposition to motions for possession is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are not relevant to the Court's determination of this motion. (*Rowland, supra*, 4 Cal.4th at p. 268, fn. 6; see *Malek Media Group LLC, supra*, 58 Cal.App.5th at p. 825; *People ex rel. Lockyer, supra*, 24 Cal.4th at p. 422.) Plaintiff State of California, by and through the Department of Water Resources' ("plaintiff") objection to defendants' supplemental request for judicial notice is **OVERRULED AS MOOT** given the Court's ruling on the supplemental request.

The Court declines to consider the supplemental declaration of Kristen Renfro filed on December 3, 2025, as it was filed after the reply deadline. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1113(d); see also *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited]; *High Sierra Rural Alliance v. County of Plumas* (2018) 29 Cal.App.5th 102, 112 fn. 2.) As the Court is not considering the supplemental declaration of Kristen Renfro, the Court declines to rule on plaintiff's objection to the supplemental declaration.

Plaintiff's motion for order for prejudgment possession of property is **DENIED**. (Code Civ. Proc., § 1255.410.) Plaintiff has not shown that there is an overriding need for it to possess the property prior to the issuance of final judgment in the case and plaintiff will suffer a substantial hardship if the application for possession is denied or limited. (Cal. Const., art. I, § 19, subd. (a); Code Civ. Proc., §§ 1255.410, subd. (d)(2)(C); Vasquez Decl.; Ghannam Decl.; Memo. Pts. & Auths., pp. 8-10.) The Court further finds that the hardship plaintiff will suffer if possession is denied or limited does not outweigh any hardship on defendant that would be caused by the granting of the order of prejudgment possession. (Code Civ. Proc., § 1255.410, subd. (d)(2)(D); (Higgins Decl., ¶¶ 2-16.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: State of California, by and through the Department of Water Resources v. Ray C. Thompson and Della Thompson, Trustees of the Ray and Della Thompson Trust et al.
Case No. CV-2023-0772

Hearing Date: February 24, 2026 Department Fourteen 9:00 a.m.

Defendants Ray C. Thompson and Della Thompson, Trustees of the Ray and Della Thompson Trust, Dan Thompson, Richard P. Gaines, and Phillip J. Gaines, Trustee of the Phillip J. Gaines 2001 Living Trust's (collectively, "defendants") request for judicial notice ISO joint opposition to motions for possession is **GRANTED IN PART**. (Evid. Code, §§ 452, subd. (d), 453.) While the Court takes judicial notice of Request No. 1, the Court does not take judicial notice of Request Nos. 2-10 as the records are not relevant to the Court's determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Defendants' objections to the declaration of Elizabeth Vasquez ISO joint opposition to motions for possession are **OVERRULED**.

Defendants' supplemental request for judicial notice ISO joint opposition to motions for possession is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are not relevant to the Court's determination of this motion. (*Rowland, supra*, 4 Cal.4th at p. 268, fn. 6; see *Malek Media Group LLC, supra*, 58 Cal.App.5th at p. 825; *People ex rel. Lockyer, supra*, 24 Cal.4th at p. 422.) Plaintiff State of California, by and through the Department of Water Resources' ("plaintiff") objection to defendants' supplemental request for judicial notice is **OVERRULED AS MOOT** given the Court's ruling on the supplemental request.

The Court declines to consider the supplemental declaration of Kristen Renfro filed on December 3, 2025, as it was filed after the reply deadline. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1113(d); see also *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited]; *High Sierra Rural Alliance v. County of Plumas* (2018) 29 Cal.App.5th 102, 112 fn. 2.) As the Court is not considering the supplemental declaration of Kristen Renfro, the Court declines to rule on plaintiff's objection to the supplemental declaration.

Plaintiff's motion for order for prejudgment possession of property is **DENIED**. (Code Civ. Proc., § 1255.410.) Plaintiff has not shown that there is an overriding need for it to possess the property prior to the issuance of final judgment in the case and plaintiff will suffer a substantial hardship if the application for possession is denied or limited. (Cal. Const., art. I, § 19, subd. (a); Code Civ. Proc., §§ 1255.410, subd. (d)(2)(C); Vasquez Decl.; Ghannam Decl.; Memo. Pts. & Auths., pp. 8-10.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Surebuilt Construction, Inc. v. Thoele
Case No. CV-2025-1723

Hearing Date: February 24, 2026 **Department Eleven** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Touchstone Lake Association v. Washington Unified School District**
 Case No. CV-2025-2330

Hearing Date: **February 24, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, defendant Washington Unified School District's demurrer to plaintiff's complaint is **CONTINUED** to **April 9, 2026**, at 9:00 a.m. in Department Fourteen.

TENTATIVE RULING

Case: **Vigil v. City of Woodland**
Case No. CV-2025-0344

Hearing Date: **February 24, 2026** **Department Fourteen** **9:00 a.m.**

Defendant City of Woodland's unopposed motion to compel responses to discovery is **DENIED AS MOOT**. (Code Civ. Proc., §§ 2030.290, 2031.300.) On February 6, 2026, plaintiff Richard Vigil served verified responses to defendant's form interrogatories, special interrogatories, and requests for production of documents, along with responsive documents. (Zertucha decl. ISO reply, ¶¶ 2-3, Exhibits A-C.)

Defendant's request for sanctions is **GRANTED**, in the amount of **\$1,462.50**, against plaintiff and his counsel. (Code Civ. Proc., §§ 2023.010, subd. (d), 2023.030, subd. (a); Zertucha decl., ¶ 6; Zertucha decl. ISO reply, ¶ 4.) The Court declines to award sanctions for time not yet incurred. Plaintiff and/or his counsel shall pay the sanction by **March 24, 2026**.

The notice of motion provides notice of this Court's tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Whitehead v. FCA US, LLC**
 Case No. CV-2025-0245

Hearing Date: **February 24, 2026** **Department Eleven** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR.**